KODABLE PRIVACY POLICY

Last Updated: 02/16/2018

This Privacy Policy explains how information about you is collected, used and disclosed by SurfScore, Inc. d/b/a Kodable, and its subsidiaries and affiliated companies ("Kodable"). This Privacy Policy applies to information we collect when you use our website, mobile application, and other online products and services that link to this Privacy Policy (collectively, the "Service").

We may change this Privacy Policy from time to time. If we make changes, we will notify you by revising the date at the top of the policy and, in some cases, we may provide you with additional notice (such as adding a statement to our homepage or sending you an email notification). We encourage you to review the Privacy Policy whenever you access the Service to stay informed about our information practices and the ways you can help protect your privacy.

Children's Information

Kodable does not knowingly collect any personally identifiable information from children under 13. While our games and lessons are used by children, they do not collect any personally identifiable information, and our website (www.kodable.com), and teacher dashboard (dashboard.kodable.com) are intended for use solely by adults (parents and teachers).

Collection of Information

Information You Provide to Us

Students who participate in games or lessons through the Service do not directly provide us with any information. For parents and teachers, we collect information you provide directly to us. For example, we collect information when you create or edit a teacher or parent account, sign up students, invite teachers, make an appointment, fill out a form, make a purchase, apply for a job, request information or customer support, subscribe to a newsletter, respond to a survey, enter a contest, or otherwise communicate with us. The types of information we may collect in connection with parent and teacher accounts include your name, email address, postal address, phone number, student information, teacher, class, or administrator information, school information, payment information, and other information you choose to provide.

Information We Collect Automatically When You Use the Service

When you access or use our Service, we automatically collect information about you, including:

- **Log Information:** We log information about your use of the Service, including the type of browser you use, access times, pages viewed, your IP address and the page you visited before navigating to our Service.

- **Device Information:** We collect information about the computer or mobile device you use to access our Service, including the hardware model, operating system and version, unique device identifiers and

mobile network information.

- **Progress Information:** We automatically collect information about student progress on games and lessons.

- **Information Collected by Cookies and Other Tracking Technologies:** We use various technologies to collect information, and this may include sending cookies to your computer or mobile device. Cookies are small data files stored on your hard drive or in device memory that helps us to improve our Service and your experience, see which areas and features of our Service are popular and count visits. We may also collect information using web beacons (also known as "tracking pixels"). Web beacons are electronic images that may be used in our Service or emails and help deliver cookies, count visits, understand usage and campaign effectiveness and determine whether an email has been opened and acted upon. For more information about cookies, and how to disable them, please see "Your Choices" below.

Information We Collect From Other Sources

We may also obtain information from other sources and combine that with information we collect through our Sites.

Use of Information

We may use information about you for various purposes, including to:

- Provide, maintain, and improve our Service and provide customer support;

- Provide and deliver the products and services you request, process transactions, and send you related information, including confirmations and invoices;

- Send you technical notices, updates, security alerts, and support and administrative messages;

- Respond to your comments, questions, and requests and provide customer service;

- Communicate with you about products, services, offers, promotions, rewards, and events offered by Kodable and others, and provide news and information we think will be of interest to you;

- Monitor and analyze trends, usage, and activities in connection with our Service;

- Detect, investigate, and prevent fraudulent transactions and other illegal activities, and protect the rights and property of Kodable and others;

- Personalize and improve the Service and provide content or features

that match user profiles or interests;

- Link or combine with information we get from others to help understand your needs and provide you with better service; and

- Carry out any other purpose for which the information was collected.

Kodable is based in the United States and the information we collect is governed by U.S. law. By accessing or using the Service or otherwise providing information to us, you consent to the processing and transfer of information in and to the U.S. and other countries.

Sharing of Information

We may share information about you as follows or as otherwise described in this Privacy Policy:

- With vendors, consultants and other service providers who assist us in providing the Service and who are given access to such information for the purpose of carrying out such work on our behalf;

- With teachers, administrators, or other school staff at your school (for teacher/school related accounts), including to alert users if there are other users at their school, to transfer user accounts to a new teacher or school contact at your school, to share student progress information and other dashboard information, or if you link your account;

- In response to a request for information if we believe disclosure is in accordance with any applicable law, regulation or legal process, or as otherwise required by any applicable law, rule or regulation;

- If we believe your actions are inconsistent with the spirit or language of our user agreements or policies, or to protect the rights, property and safety of Kodable or others;

- In connection with, or during negotiations of, any merger, sale of company assets, financing or acquisition of all or a portion of our business to another company; and

- With your consent or at your direction, including if we notify you through our Sites that the information you provide will be shared in a particular manner and you provide such information.

We may also share aggregated or anonymized information that does not directly identify you.

Analytics Services Provided by Others

We may allow third parties to provide analytics services. These entities may use cookies, web beacons and other technologies to collect information about your use of the Service and other websites, including your IP address, web browser, pages viewed, time spent on pages, links clicked and conversion information. This information may be used by Kodable and others to, among other things, analyze and track data, determine the popularity of certain content, deliver advertising and

content targeted to your interests on our Service and other websites and better understand your online activity.

Security

Kodable takes reasonable measures to help protect information about you from loss, theft, misuse and unauthorized access, disclosure, alteration and destruction.

Your Choices

Account Information

You may update, correct or delete information about you at any time by logging into your online account and editing your account information (under the View Account button). If you wish to delete your account, you may do so by logging into your online account and clicking on the Delete Account button (under the View Account button). Please note that we may retain certain information as required by law or for legitimate business purposes. We may also retain cached or archived copies of information about you for a certain period of time.

Cookies

Most web browsers are set to accept cookies by default. If you prefer, you can usually choose to set your browser to remove or reject browser cookies. Please note that if you choose to remove or reject cookies, this could affect the availability and functionality of our Service.

Promotional Communications

You may opt out of receiving promotional emails from Kodable by following the instructions in those emails. If you opt out, we may still send you non-promotional communications, such as those about your account or our ongoing business relations.

Contact Us

If you have any questions about this Privacy Policy, please contact us at privacy@kodable.com.